

		Alternatively, Defendants contend the Evaluation is in connection with issues under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law. In doing so, Defendants make the same arguments addressed above, that is, that the Evaluation is prepared in connection with a potential responsibility hearing regarding Plaintiffs should they be denied a bid in the future based on the District deeming them to be nonresponsible bidders. As such, Defendants have not demonstrated there is any issue “under consideration or review” in any proceeding, official or otherwise, other than a potential responsibility hearing that may occur if the specific sequence of events set forth above happens to take place. While Defendants rely on <i>Hansen v. Dept. of Corrections & Rehabilitation</i> (2008) 171 Cal.App.4th 1537, 1544, the statements at issue were made during an internal investigation, which the court found itself to be an official proceeding. Additionally, <i>Ojje v. Brown</i> (2019) 43 Cal.App.5th 1027 did not involve a discussion of section 425.16, subdivision (e)(2). As the Court does not find Defendants have met their burden of establishing the Evaluation is protected activity, the Court does not address the second prong.
10	23-01302857 <i>Providence Capital Funding, Inc. vs. Team MMJ Trucking LLC</i>	Motion to Accept Late Filing Defendants’ Motion for Court to Accept Late Filing of Defendants’ Opposition to Plaintiff’s Motion for Summary Judgment is GRANTED. Defendants Team MMJ Trucking, LLC, Mike Springer and Tonya Springer move the Court to accept the late filing of their opposition to Plaintiff’s motion for summary judgment or, alternatively, summary adjudication. Defendants seek mandatory relief under Code of Civil Procedure section 473, subdivision (b). A motion for mandatory relief must be made no more than six months after entry of judgment and be accompanied by an attorney’s sworn affidavit attesting to the attorney’s “mistake, inadvertence, surprise or neglect” and a copy of the proposed pleading to be filed. (Code Civ. Proc., § 473, subd. (b).) The attorney affidavit of fault must contain a “straight forward admission of fault.” (<i>State Farm Fire & Casualty Co. v. Pietak</i> (2001) 90 Cal.App.4th 600, 610.) But it need not contain an explanation of the reasons for the attorney’s mistake, inadvertence surprise or neglect. (<i>Martin Potts & Assocs., Inc. v. Corsair, LLC</i> (2016) 244 Cal.App.4th 432, 438-441.) Therefore, relief must be granted, even if the attorney’s error was inexcusable, “unless the trial court finds the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.” (<i>Ibid.</i>)

		If mandatory relief is granted, the court must “direct the attorney to pay reasonable compensatory legal fees and costs” to the opposing counsel or parties. (Code Civ. Proc., § 473, subd. (b).) The court may also order the offending attorney to pay monetary sanctions up to \$1,000 to the opposing party, or up to \$1,000 to the State Bar Client Security Fund, or “[g]rant other relief as is appropriate.” (Code Civ. Proc., § 473, subd. (c)(1).) Defendants’ opposition to Plaintiff’s MSJ/MSA was due by 6/26/26. (Code Civ. Proc., § 437c, subd. (b)(2) [20 days before the 7/16/26 hearing date].) Defendants did not file their complete “corrected” opposition and supporting papers until 7/7/26. (ROA 162, 164, 166, 168.) Plaintiff filed its reply and objections on 7/9/26. (ROA 178, 180, 182, 183.) The Court subsequently issued a tentative ruling declining to consider Defendants’ late opposition and granting the motion. At the hearing on 7/16/26, the Court indicated that Defendants should file a motion under Code Civil Procedure, section 473, subdivision (b) and continued the hearing for the summary judgment to 9/24/26. (ROA 188.) The Court finds the motion was timely filed on 8/19/26. The motion is accompanied by a declaration from Defendants’ counsel containing a straightforward admission of fault for filing Defendants’ opposition late as well as an explanation of his mistakes. (Maily Decl. ¶¶ 2-8.) The motion is also accompanied by a revised opposition and supporting papers, which were revised after the 7/16/26 hearing. (Maily Decl. ¶ 10, Exs. A-D.) Defendants have therefore established they are entitled to mandatory relief. However, Defendants may not file the revised opposition and supporting papers. Defendants filed a complete “corrected” opposition and supporting papers on 7/7/26 and Plaintiff filed its reply and objections on 7/9/26. Defendants have not explained why they should be given a third bite at the apple and further inconvenience Plaintiff and the Court. The motion is granted. The Court accepts the opposition and supporting papers that were filed late on 7/7/26. The parties should appear at the hearing prepared to discuss the amount of Plaintiff’s reasonable compensatory legal fees and costs.
11	22-01251948 <i>Subcontracting Concepts, LLC vs. Martin</i>	Motion for Summary Judgment and/or Adjudication Defendants’ motion for summary judgment is GRANTED. Defendants Estate of Albert Luongo (“Estate”) and Superior Courier & Logistics, LLC (“Superior”) move for summary judgment in their favor and against plaintiff Subcontracting Concepts, LLC (“Plaintiff”). Defendants’ request for judicial notice is GRANTED.